HEADNOTE

> *"During the written procedure, Article 33(10) UPCA and Rule 295(a) RoP give the Court a possibility to stay proceedings relating to a patent which is also the subject of opposition proceedings before the EPO, if a rapid decision may be expected from the EPO. Rule 118.2(b) RoP, which includes an obligation to stay proceedings in certain situations, only apply during the oral procedure. This follows from the title of Rule 118 ("Decision on the merits") and the fact that it is placed in the Chapter of the RoP governing the oral procedure. An application to stay proceedings based on Article 33(3) (b) UPCA, may be dismissed if submitted before the local or regional division when no one has proposed bifurcation."*

COURT
Nordic-Baltic Regional Division

PROCEEDINGS
Infringement action

PATENT
EP3769722

LOW PROFILE DELIVERY SYSTEM FOR TRANSCATHETER HEART VALVE

KEYWORDS
Request for stay | Article 33(10) UPCA | Rule 295 RoP | Rule 118.2(2) RoP

Article 33 Competence of the divisions of the Court of First Instance

SUMMARY
The Nordic-Baltic Regional Division ruled on an infringement action. The patent at issue relates to a low profile delivery system for transcatheter heart valve. According to the headnotes of the decision, the UPC has discretion to stay proceedings when a patent is also subject to opposition before the EPO. This discretion applies during the written procedure if the EPO is likely to decide quickly. However, Rule 118.2(b) RoP imposes a mandatory stay obligation that applies only during the oral procedure. This distinction follows from the rule's title and its placement within the chapter governing oral proceedings. Additionally, an application to stay proceedings based on Article 33(3)(b) UPCA may be dismissed if submitted to the division before bifurcation is proposed. This applies when no party has requested bifurcation of the proceedings.